

Contact:Student Voice – studentvoice@guild.bham.ac.uk

The following procedure must be followed by any Full Member submitting a complaint alleging that the Guild's Referendum Regulations have been breached. Complaints received from individuals that are not Full Members of the Guild will be accepted, but investigation is at the discretion of the Returning Officer (RO).

Complaints will not be accepted in any format other than via the Referendum Complaint Form on the Guild website.

Complaints will only be accepted up to two days (48 hours) after the close of voting.

Complaints will only be accepted if - in the reasonable opinion of Deputy Returning Officer ("DRO") - they relate to a Full Member, Student Groups, or recognised campaign's behaviour in relation to the furtherance of the aims of the Referendum.

For the purposes of this document:

1. The imposition of a 'sanction' shall include a situation in which, in order to ensure that a Referendum is fairly and properly conducted (having due regard to the need to promote and compel compliance with the Rules), the DRO or Returning Officer (or other nominee) declares the Referendum null and void and calls for it to be re-run.
2. References in this document to the RO shall include reference to the Returning Officer (or other nominee) themselves.

Submitting a Complaint via the Referendum Complaint Form

1. Complainants must complete all required sections of the form to the best of their ability. The questions set out in the form can be found in this document.
2. Complainants must identify which Rule* has been broken, provide a written statement in support of their complaint, and submit any substantiating evidence on which they wish to rely.
3. Complainants may allege within a single complaint that an individual, Group, or recognised Campaign Team has broken multiple Rules.
4. If a complaint is submitted without substantiating evidence, it may be rejected.

*Please see Regulation 1.5 of the Referendum Regulations: *"These Regulations, all other Guild governing documents, the legislation (including, without limitation, the Regulations) of The University of Birmingham ("the University"), and all laws of the land shall govern students of the University, and Student Groups as regards elections to which these Regulations apply"*. For the purposes of this document, a 'Rule' shall mean any part of the foregoing documents and laws.

Publishing Complaints

The Guild will publish a summary of complaints and their outcomes, and may include the name of the complainant and the individual, Group, or recognised Campaign Team complained against. More information on how complaints are published can be found in the Complaints Log section below.

Requests for anonymity may be made and are only granted at the discretion of the DRO.

Determining Complaint Outcomes

When a complaint is received the following process shall be followed:

1. The Guild's Student Voice Team will log the complaint.
2. The Student Voice Team will check whether the complaint is relevant to the Referendum and, where reasonably appropriate, supported by substantiating evidence.
3. The DRO will review the complaint and associated evidence.
 - a. If the complaint is not related to the Referendum, and/or is not supported by substantiating evidence, it is at the discretion at the DRO whether the complaint is accepted or rejected.
 - b. Complaints not related to the Referendum may be submitted to complaints@guild.bham.ac.uk.
 - c. Complainants can provide additional information or evidence in support of their complaint at any point before it is determined by the DRO by submitting it to studentvoice@guild.bham.ac.uk.
 - d. The DRO may call in complainants and those complained of for investigation meetings or request additional evidence from them, and may conduct their own investigations in connection with the subject matter of the complaint.
 - e. Based on the evidence before them the DRO shall determine if, on the balance of probabilities, a Rule has been broken.
4. If it is determined that a Rule has been broken, the DRO shall decide upon an appropriate sanction.
5. The DRO shall inform the Student Voice Team of the outcome of the complaint (outcomes shall typically take the form of: 'Upheld', 'Not Upheld', 'Partially Upheld' or 'Referred To Another Process').
6. The Student Voice Team shall inform the complainant of the outcome of the complaint.

Investigations

As per Referendum Regulation 2.5 the RO (or Nominee) may instigate investigations into breaches of the Rules - whether or not a complaint has been submitted - where there is reasonable cause to believe that a breach has been committed.

The RO (or Nominee) will usually decide to instigate an investigation based on information received – whether or not contained in a Referendum Complaints Form - which reasonably indicates that a material breach of the Rules has occurred.

Upon deciding to instigate an investigation, the DRO shall inform the Student Voice Team and may instruct them to call in relevant students to conduct investigation meetings.

A summary of the outcome of any investigation, but subject to the discretion of the DRO, be published in the Guild's Referendum Complaints Log.

Those who are the subject of complaints/investigations

Individuals, Groups, or recognised Campaign Teams who are the subject of complaints/investigations will save for in exceptional circumstances:

- be informed of the existence of the complaint/investigation if the DRO is reasonably satisfied that there is substance to the complaint/investigation.
- in those circumstances, be given 24 hours to respond to the complaint/investigation and submit any substantiating evidence on which they wish to rely.

The Student Voice Team shall inform the member of the outcome of the complaint/investigation regardless of whether there has been a sanction placed on them. Sanctions shall take effect from the point of first notification to the individual (however communicated).

Substantiating evidence

All substantiating evidence submitted in relation to complaints and appeals must be lawfully obtained and lawfully shared.

Student Behaviour Towards Guild Staff

Students must treat Guild and University staff with respect. The Guild does not tolerate harassment or bullying of its or the University's staff.

Guild and University staff should email complaints@guild.bham.ac.uk if they wish to complain about an individual's behaviour in relation to the Referendum. No other Referendum related complaints will be accepted via this inbox.

The DRO may investigate complaints from Guild and University staff as noted above.

Referendum Appeals

Complainants and individuals who are the subject of complaints/investigations have a right to appeal the outcome of the relevant complaint/investigation, as determined by the DRO, as set out in the Referendum Regulations. The following process shall be followed for appeals:

1. Appeals must be submitted to studentvoice@guild.bham.ac.uk within 48 hours of first notification of the outcome of the relevant complaint/investigation (however communicated).
2. Appeals must contain an explanation of how one or more of the following grounds of appeal is made out:
 - the DRO's decision was based on a misinterpretation of the relevant Rule(s);
 - the DRO's decision was procedurally irregular or unfair;
 - in making their decision, the DRO gave undue relevance to facts and matters that in reality lacked the relevance for being considered in the decision-making process;
 - in making their decision, the DRO had not given due relevance to facts and matters that were relevant and worthy of consideration in the decision-making process; or
 - the DRO's decision was so unreasonable or irrational that no reasonable person acting reasonably as DRO could have made it.
3. The Student Voice Team will send the appeal, the complaint/investigation, and any associated evidence to the Returning Officer (or nominee).
4. An appellant will not, in connection with their appeal, be able to admit substantiating evidence that was not available to the DRO in making their decision unless the appellant can demonstrate to the Returning Officer's (or nominee's) reasonable satisfaction that:
 - the substantiating evidence could not, using reasonable efforts, have been submitted to the DRO before the point of their decision;
 - the substantiating evidence would probably have a significant – though not necessarily decisive – impact on the outcome of the appeal; and
 - the substantiating evidence must appear credible – though not necessarily incontrovertible.
5. A respondent to an appeal (if any) will save for in exceptional circumstances:
 - be informed of the existence of the appeal, and of any additional substantiating evidence admitted by the Returning Officer (or nominee), if the Returning Officer (or nominee) is reasonably satisfied that there is substance to the appeal.
 - in those circumstances, be given 48 hours to respond to the appeal and submit any substantiating evidence on which they wish to rely.
6. The Returning Officer (or nominee) will decide whether - by reference to the grounds of appeal set out above and based on the admissible evidence before them - to uphold or overturn the decision of the DRO. In the event that the Returning Officer (or nominee) overturns the decision of the DRO, the Returning Officer (or nominee) shall based on the admissible evidence before them determine whether, on the balance of probabilities, a Rule has been broken, and if so upon an appropriate sanction.
7. The Student Voice Team shall inform the appellant and the respondent of the outcome of the appeal regardless of whether there has been a sanction placed subject to the complaint/investigation (as appealed). Sanctions imposed by the DRO) shall take effect from the point of first notification to the individual (however communicated).

Complaints Log

The Complaints Log shall contain the following details (amended as appropriate in the event that an entry in the Complaints Log relates to an investigation instigated by the DRO in the absence of a complaint):

- Name of complainant.
- Name of the those complained of
- Date of the complaint
- Details of the Rule(s) claimed to be broken
- Summary of the complaint
- Summary of the outcome of the complaint
- Date of the DRO's decision on the complaint

The Referendum Complaints Log shall be published alongside the Results of the Referendum. The publication of the Complaints Log within the Voting Period is at the discretion of the DRO.

Complaints will not usually be published until the Complainant and individual(s) complained of have been informed of the outcome.

The Referendum Complaints Log will be published on the Guild website.

Referendum Complaints Form

All complaints must be submitted via the Referendum Complaints Form on the Guild website. If complainants are not able to access the Referendum Complaints Form they should inform studentvoice@guild.bham.ac.uk and an alternative method may be provided.

Your Information

1. What is your name? (short-text)
2. What is your email? (short-text)
3. What is your phone number (short-text)
4. Are you a student at the University of Birmingham (Yes/No)
 - a. If yes, what is your student ID? (short-text)
 - b. If not are you a: student at another University, UoB staff member, other

Complaint Information

5. Who are you submitting a complaint against? (short-text)
 - a. An individual, a Student Group, a recognised Campaign, the Guild
6. Is your complaint about the behaviour of an individual(s) in relation to the furtherance of the aims of the Referendum? (Yes/No)
7. Are you directly involved in, or did you witness, the subject matter of the complaint? (Yes/No)

Details of Allegation

In order to be able to determine if any Rule has been broken, please identify which Rule has been broken and submit any substantiating evidence on which you wish to rely. Please also refer to the Complaints Guidance.

8. Which Rule has been broken? (Drop-down of Elections Regulations, Guild policy, University policy, other)
9. How did they break the Rule? (long-text)
10. When did they break the Rule? (date)
 - a. If they broke the Rule across multiple dates please put the first date at which they broke the Rule.
11. Where did they break the Rule? (short-text)
12. What substantiating evidence do you have that they broke the Rule? (upload)
13. How does this substantiating evidence show that the Rule has been broken? (short-text)
14. How does this substantiating evidence show they broke the Rule? (long-text)
15. Have they broken any other Rules? (Yes/No)
 - a. Questions 8-15 repeat if the answer is Yes

Declaration

16. Do you declare the information submitted in this form is accurate, to the best of your knowledge? (Yes/No)
17. Do you declare that you have told the truth when completing this form? (Yes/No)
18. Do you declare that you have the lawful right to share all of the information and substantiating evidence included in this form? If you are not sure, please contact the Guild for guidance. (Yes/No)

Please note that the information and substantiating evidence included in this form – including your name and full details of your complaint - may be shared with the those complained about in order to allow an investigation of the complaint.

Please also note that all of the information and substantiating evidence included in this form – including your name and full details of your complaint - may be published on the Guild website as part of the Guild's Referendum Complaints Log.

If you would like to request anonymity in connection with your complaint, please set out below the reasons for that request. Please be aware that anonymity is at the discretion of the DRO who may not grant your request. The expectation is that complaints will be published and anonymity will only be granted in exceptional circumstances. If anonymity is not granted then we will inform you and give you the option to withdraw your complaint. (long-text)